

North Carolina Voter Registry Report

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EXECUTIVE SUMMARY

The primary objectives of this report are:

- Describe the management system for voter registration information for the state of North Carolina.
- Evaluate the risks and threats of the current system.
- Make a case for stronger legal privacy protection for North Carolina voters.

The contents of the report include:

Letter to Governor & Secretary of State: A Letter to the Governor and Secretary of State that discusses the potential privacy risks we've identified and recommendations that North Carolina can follow to mitigate privacy risks for North Carolina voters.

Interview with State Board of Elections: A summary of an interview with members of the North Carolina State Board of Elections including Executive Director Karen Bell, Secretary Dr. Stella Anderson, and Public Information Director Patrick Gannon. The interview supplemented our own research regarding the management of voter registration data in North Carolina. A link to a recording of the interview and a list of our interview prepared questions is also included in the report.

ADPPA Analysis: A detailed analysis that evaluates North Carolina's compliance with the American Data Privacy and Protection Act (ADPPA). Analysis highlights that out of the **29 provisions of the ADDPA**, NC voter records system is **compliant with 13**, and **non-compliant with eight of them. Five provisions of ADDPA do not pertain** to the voter records system. Whereas **compliance of three other provisions** of the ADDPA could **not be confirmed** despite approaching the NCSBE for their response. Moreover, best practices required to be adopted by NCSBE to make it compliant with the ADDPA have also been suggested.

Data Use Agreement: A proposed data use agreement that would be signed by anyone who downloads North Carolina voter registry data.

Privacy Impact Assessment: A privacy impact assessment that includes an evaluation of the types of personally identifiable information being collected, the purposes for which it is collected, the security measures in place to protect it, and the policies and procedures governing its use and disclosure. **The main object of the PIA is to identify potential privacy risks.** Furthermore, there are recommendations to mitigate identified risks.

Comparison Against Massachusetts: A comparison of North Carolina's publicly available voter data with Massachusetts' publicly available data. Overall it was found that Massachusetts provides more privacy and protection for their resident voters' data.

Dear Governor Roy Cooper and the Secretary of State of North Carolina,

We are a group of Georgia Tech Students who recently has conducted an analysis of how your state voting records are managed, and we have gathered a set of recommendations on how to better maintain privacy protection for your state residents. We believe that the current network used by North Carolina to maintain the voter records, SEIMS, has many risks that could lead to privacy leaks. Also, we have found that there are weak regulations governing how people can access the public voting records, opening up the possibility of data misuse. There are three areas where we see there could be the most improvement.

First, we recommend a review of how data can be accessed by the general public. Since voting records are public and free to use in the state of North Carolina, anyone can request data about any voter, in any county, all the way back to the year 2005. These records are open to download on the North Carolina State Board of Elections webpage, and do not require any sort of identification. We suggest requiring request forms before allowing access to data, as this makes it easier to track down suspects of data violations. An even more aggressive approach would be to limit public voter records to entities deemed appropriate by the state, and requiring the records be used for non-commercial purposes only.

Another critical issue we found is in the SEIMS system, in that much of the codebase used to support this network is outdated and uses legacy code. One of the main security risks of legacy code is its vulnerability to known and unknown security threats. These vulnerabilities can be exploited by malicious actors to gain unauthorized access, steal data, or disrupt the system. We suggest that NC implements a robust and comprehensive testing strategy that includes unit testing, integration testing, and regression testing to identify any defects or vulnerabilities. Create comprehensive documentation that includes the purpose, functionality, and limitations of the legacy code. This can help future developers understand the codebase and reduce the risk of misinterpretation or mismanagement. Lastly, invest in training for the development teams to ensure that they have the necessary skills and expertise to work with legacy code effectively. This can include providing training on modern coding practices, security best practices, and documentation standards.

Finally, we recommend a migration from local servers, that the current SEIMS system uses, to using cloud-based computing to better manage voter registration records. Our team strongly believes that using a cloud-based system provides a significant increase in privacy protection and allows for better performance in times of high traffic. Not only that, but a cloud-based system would be much more economical and easier to maintain than what is currently being used.

These issues are critical to maintaining privacy for North Carolina residents, and need urgent care before any larger attacks can occur. We hope that you understand the gravity of this situation, and we look forward to working with you in the future.

Sincerely,
Group 7

NCSBE INTERVIEW

Link to Video Recording of Interview:

<https://drive.google.com/file/d/1MM9z4KbiBYkpYBqEc6aPSQ87bixuEaYQ/view?usp=sharing>
Summary

On March 29, 2023, our team conducted an interview with members of the North Carolina State Board of Elections (NCSBE). The members present included Executive Director Karen Bell, Secretary Dr. Stella Anderson, and Public Information Director Patrick Gannon. Karen gave the most insight about the overall operations of NCSBE and Patrick provided insight about laws regarding voter data as well as some of the technical implementations. The most notable insights we gathered from the interview that we would not have otherwise are the motivations for the public nature of personally identifiable information. They emphasize the importance of transparency in state operations, as mandated by law to make information a public record. Additionally, they believe that voter information publication is crucial for enabling the challenge of voter eligibility, which they consider a fundamental principle of their commonwealth.

Prepared Questions for Interview:

- Can you describe your role and responsibilities at the NCSBE?
- What are the ways that the NCSBE collects voter registration data?
- What is the purpose for collecting voter registration data?
- Why is voter information made public?
- What information is kept private?
- What information is considered private?
- Why is certain data kept private?
- How does NCSBE use private data?
- Who has access to private data not made available in the records and why?
- Are there procedures in place to ensure that the information maintained is accurate, complete and, and up to date?
- Do you believe there are privacy risks associated with the collection of voter registration data?
- Are you aware of any relevant regulatory policies/recommendations that the NCSBE follows to protect voter's personal information?

See appendix for transcript and invite emails.

ADPPA ANALYSIS

Analyze how the voter registries would or wouldn't comply with the ADPPA even if they wouldn't be subject to ADPPA.

For ease of reference, a table is added to ascertain the compliance of the voter records systems of NCSBE with the proposed ADDPA.

Table 4.1: Compliance Status of the NCSBE Voter Records System with the ADDPA highlights current compliance status of NCSBE if ADDPA were to pass. In addition, table also recommends the best practices required to be adopted by NCSBE to make it compliant with the ADDPA.

Table 4.1: Compliance Status of the NCSBE Voter Records System with the ADDPA

<i>Category [1]</i>	<i>Statutory Requirements of ADDPA [1]</i>	<i>Current Compliance Status [2]</i>	<i>Best Practices for Compliance with ADDPA</i>
Data minimization	Imposes a baseline duty on all covered entities not to unnecessarily collect or use covered data, regardless of any notice or consent.	<i>Compliant.</i> Only necessary fields (name, date of birth, and address) are mandatorily collected. Notice & choice is provided for collection of phone numbers.	Current practice is sufficient to comply with the ADDPA.
	Limits the collection, processing, and transfer of covered data unless limited to what is reasonably necessary and proportionate to provide or maintain a product or service requested by the individual, or effect an expressly permitted purpose.	<i>Compliant.</i> PIIs which are required to be collected are reasonably necessary and proportionate for voter registration.	Current practice is sufficient to comply with the ADDPA.
Heightened Protections and Sensitive Data	Imposes stricter data minimization rules for sensitive covered data: it cannot be collected or used beyond what is strictly necessary to provide service or for expressly enumerated purposes.	<i>Compliant.</i> “Sensitive covered data” as defined in the proposed ADDPA [1] is not collected. Even government issued identifiers such as drivers license number and SSN are not required to be	Current practice is sufficient to comply with the ADDPA.

<i>Category [1]</i>	<i>Statutory Requirements of ADDPA [1]</i>	<i>Current Compliance Status [2]</i>	<i>Best Practices for Compliance with ADDPA</i>
		collected for voter registration.	
	Transfer of sensitive covered data to third parties is prohibited without opt-in consent (with a few narrow exceptions).	Compliant. Sensitive covered data is neither collected nor transferred to the third parties.	Current practice is sufficient to comply with the ADDPA.
Use and disclosure limitations and controls	Collection, use, and transfer of information identifying an individual's online activities over time and across third party websites & services is limited, cannot be used for ads.	Not Applicable	Not Applicable
	Right to withdraw previously given consents.	Non-compliant	Legislation be introduced to give voters the right to withdraw previously given consents and opt-out of covered data transfers to third parties.
	Right to opt-out of covered data transfers to third parties.	Non-compliant	
	Right to opt-out of targeted advertising.	Not Applicable	Not Applicable

<i>Category [1]</i>	<i>Statutory Requirements of ADDPA [1]</i>	<i>Current Compliance Status [2]</i>	<i>Best Practices for Compliance with ADDPA</i>
	Requires compliance with unified opt-out mechanisms.	<i>Non-compliant</i>	Legislation be introduced to ensure compliance with unified opt-out mechanisms.
Manipulative design restrictions	Prohibits obtaining consent in ways that are misleading or manipulative (e.g., dark patterns).	<i>Compliant</i>	Current practice is sufficient to comply with the ADDPA.
Take-it-or-leave-it terms and pay-for-privacy	Covered entities may not deny, condition, or effectively condition the provision or termination of services or products to individuals by having individuals waive any privacy rights in the Act.	<i>Non-compliant</i>	Legislation be introduced to ensure voting rights of the individuals who do not waive off their privacy rights.
Transparency	All covered entities and service providers must have privacy policies that meet a certain standard.	<i>Compliant</i>	
	Entities must notify individuals affected of material changes to privacy policies & offer opportunity to withdraw consent.	<i>Unconfirmed.</i> NCSBE Privacy Policy was last updated in August 2021. NCSBE was approached; however, they did not respond to this particular query.	
Prohibits discriminatory uses of data	Covered entities and service providers may not collect, process, or transfer covered data in a manner that discriminates on the basis of race, color, religion, national origin, sex, or disability.	<i>Compliant</i>	Current practice is sufficient to comply with the ADDPA.
Algorithmic Impact Assessments	Requires large data holders to conduct annual algorithmic impact	<i>Not applicable</i>	<i>Not applicable</i>

<i>Category [1]</i>	<i>Statutory Requirements of ADDPA [1]</i>	<i>Current Compliance Status [2]</i>	<i>Best Practices for Compliance with ADDPA</i>
	assessments on algorithms that pose a consequential risk of harm and submit to the FTC.		
Kids/teens protections	Kids' data is protected as sensitive data. Targeted advertising is expressly prohibited to individuals under 17.	<i>Not applicable</i>	<i>Not applicable</i>
	Covered entities may not transfer the covered data of minors without express affirmative consent.	<i>Not applicable</i>	<i>Not applicable</i>
Data Broker Opt-out	Establish a "Do Not Collect" mechanism where individuals may submit a single request to all registered data brokers to have their covered data deleted within 30 days.	<i>Non-compliant</i>	Legislation be introduced to ensure compliance with "Do Not Collect" mechanism
Data Security Requirements	Covered entities and service providers must have reasonable data security practices and procedures, based on their size, nature and scope of processing, volume and sensitivity of data, current state of the art, and cost.	<i>Compliant</i>	Current practice is sufficient to comply with the ADDPA.
	Large data holders must conduct biennial audits to ensure compliance with all applicable laws.	<i>Compliant</i> NCSBE conducts biennial audits of the voter data.	
Executive Responsibility	An executive must personally certify compliance with the ADDPA.	<i>Non-compliant</i>	An executive be appointed to personally certify compliance with the ADDPA.

<i>Category [1]</i>	<i>Statutory Requirements of ADDPA [1]</i>	<i>Current Compliance Status [2]</i>	<i>Best Practices for Compliance with ADDPA</i>
Privacy Impact Assessments	Covered entities must conduct biennial privacy impact assessments that weigh the benefits of data use against the potential adverse consequences to individual privacy.	Unconfirmed. NCSBE was approached; however, they did not respond to this particular query.	NCSBE should conduct biennial PIAs of the voter data, in case not being practiced currently.
	PIAs by large data holders must be approved by the entity's privacy protection officer.	Unconfirmed. NCSBE was approached; however, they did not respond to this particular query.	NCSBE should appoint a privacy protection officer for approval of the PIAs, in case not being practiced currently.
Service Providers	Service providers can only collect, process, and transfer data to the extent necessary and proportionate to provide service requested by covered entity.	Compliant	Current practice is sufficient to comply with the ADDPA.
	Covered entity must exercise reasonable due diligence in selection of service providers.		
Third Parties	Individuals can opt-out of covered data transfers to third parties.	Non-compliant Voter data is available to any interested party online.	Legislation be introduced to provide NC voters the right to opt-out of data transfers to third parties.
	Third parties cannot process sensitive covered data beyond the purpose for which opt-in consent was obtained.	Compliant	
	Third parties cannot process non-sensitive covered data beyond purposes disclosed in the covered entity's privacy notice as the reasons	Compliant	

<i>Category [1]</i>	<i>Statutory Requirements of ADDPA [1]</i>	<i>Current Compliance Status [2]</i>	<i>Best Practices for Compliance with ADDPA</i>
	for which the covered entity transfers data to third parties.		
	Covered entity must exercise reasonable due diligence in deciding to transfer data to third party.	<i>Compliant</i>	
Right to access, correct, and delete	Grants rights to access/correct/delete and for data portability.	<i>Non-compliant</i> Voters have the right to access and correct their data. But they have no right to delete their data.	Legislation be introduced to ensure compliance with right to delete provision of the ADDPA.

References

- [1] EPIC, "Comparison of American Data Privacy and Protection Act vs. California Privacy Laws," EPIC , 28 July 2022. [Online]. Available: <https://epic.org/wp-content/uploads/2022/07/ADPPAvCCPA-07282022.pdf>. [Accessed 4 April 2023].
- [2] N. C. S. B. o. Elections, "FAQ: Voter Registration," North Carolina State Board of Elections, [Online]. Available: <https://www.ncsbe.gov/registering/faq-voter-registration>. [Accessed 5 April 2023].

North Carolina Data Use Agreement for State Registry Voter Data

Background [1]

The North Carolina State Voter Registry contains a database of registered voters' information, including names, addresses, phone numbers, age, and other personally identifiable information. In addition to in-house record-keeping of those who have voted in North Carolina's elections, the purpose of collecting the voter data is to progress academic research, gain insight into correlation between voter demographic and political affiliation for civil rights, and protect previous voters from unjust removal from the voting process [2]. Certain voter information is made publicly available primarily for compliance of legislative and state laws; the public has knowledge of voters and can challenge individuals that may or may not be a valid voter [2]. Individuals that are participating in the electoral process have security knowing that voter registration data is legitimate and public. The registry gained possession of the data through forms that are filled out by those who wish to vote at the polling precinct or through an online voter form [2]. Voters voluntarily fill out their personally identifiable information (including name, address, and phone number) when they are voting at the precinct [2]. The data use agreement allows for sharing a limited data set of voter registration information that does not include all personally identifiable information (PII) that is filled out by the voter.

The Limited Data Set does not include voter birthdate, Social Security number, and driver's license number, which are confidential under state law [3]. The data set includes information such as name, address, phone number, voter registration status, voter demographics, party affiliation, and district information [3].

This Data Use Agreement, effective as of _____ ("Effective date"), is entered into by and between _____ ("Researcher") the North Carolina State Registry. The purpose of this Agreement is to provide Recipient with access to a Limited Data Set ("LDS") for academic research and institutional collaboration in accord with state and legislative laws. Terms of the Agreement are as follows:

1. Permitted/Prohibited Uses of Data. [1]

- a. Registry hereby grants to Researcher the right to access and use the Data for the purpose expressly set forth in this Agreement.
- b. Data shall solely be used to perform academic research or institutional collaboration and NOT for sales, marketing, or other methods of financial gain by the user. The Researcher must submit a research proposal to Registry prior to acquisition of data.
- c. Researcher cannot sell or edit/modify the data then sell. The data is publicly available and should not be sold as a product.
- d. The data should never be shared although it is publicly available. Any user outside of the research team that desires access to the data must only access it directly through download on the North Carolina Registry website.

- e. Researcher shall be responsible for performing the Research, overseeing Research personnel and for overall compliance with this Agreement. Any subcontractors or agents that receive access to the Limited Data Set must also follow same restrictions outlined in Agreement, enforced by researcher. Registry shall have no obligations with respect to any aspects of the Research.
 - f. Researcher must follow all applicable laws to ethical research practice using the sensitive voter data obtained after granted the request. Applicable laws following ethical research practice of sensitive voter data include those in state and federal laws and outlined in the Agreement.
2. Companies and Third-party users.
- a. Data is collected from Third parties such as NVRA agency, but private information is not given to them (data is only pulled from them, not pushed to them). The database holding the information (SEIMS database) is developed in-house, not outsourced [2].
 - b. EIREC: upon authorization of North Carolina State Board of Elections joining the organization, state members among states can exchange data about voter registration in hopes of tracking voters that move across states [2].
3. Data ownership, maintenance.
- a. The Data Lifecycle follows the following structure:
 - i. Data collection: Voter registration forms in precinct and online
 - ii. Data submission: NVRA agency aggregating information into machine-readable format for database [2].
 - iii. Data dissemination/release: Data uploaded into SEIMS database, North Carolina Registry's database holding NC voter information, then available for download on State Board of Elections website [2].
 - 1. Data is updated weekly on Saturday mornings [3].
 - iv. Data research: Researcher will sign the Agreement, following permitted uses of data, and commence academic research on North Carolina state voter information.
 - v. Data archiving: Data is ongoing, and Agreement is ongoing if Limited Data Set is available for public download on NC State Board of Elections website.
4. Terms and Termination.
- a. Term: The term of this Agreement shall begin on the Effective Date and shall remain in effect as long as Researcher has possession of the data and/or the research has not concluded. Therefore, the term is ongoing beginning from Effective date.
 - b. Termination by Researcher: Researcher may terminate Agreement at any time by destroying the Limited Data Set or having no means of accessing the voter data unless to request from Registry, again.
 - c. Termination by Registry: Registry may terminate Agreement.
 - d. Effects of Termination: The Limited Data Set must be destroyed by the Researcher and cannot be re-accessed.

IN WITNESS WHEREOF, each of the undersigned has caused this Agreement to be duly executed in its name and on its behalf. [1]

NORTH CAROLINA STATE REGISTRY	RESEARCHER
By: _____	By: _____
Print Name: _____	Print Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

References

DUA Layout:

[1] Friedler HS, Leavy MB, Bickelman E, et al, “Outcome Measure Harmonization and Data Infrastructure for Patient-Centered Outcomes Research in Depression: Data Use and Governance Toolkit [Internet]”, Rockville (MD): Agency for Healthcare Research and Quality (US), Oct. 2021. Retrieved from: <https://www.ncbi.nlm.nih.gov/books/NBK574757/>

NCSBE interview:

[2] K. Bell, S. Anderson, P. Gannon, “NCSBE Interview with Georgia Tech”, Interviewed by M. Jinks, V. Sagar, F. Idrees, A. Joshi, J. Zhang March 29, 2023, Online Interview

NCSBE Website:

[3] N. C. S. B. o. Elections, "FAQ: Voter Registration," North Carolina State Board of Elections, [Online]. Available: <https://www.ncsbe.gov/registering/faq-voter-registration>.

Privacy Impact Assessment for the

NC State Board of Elections Voter Records

Matthew Jinks, Fahad Idrees, Arya Joshi, Vikram, Sagar, Jingrui Zhang

1. Overview

1.1 Describe the project and its purpose.

We are a privacy consulting firm. We have been retained by a privacy philanthropist, who wishes to be anonymous at this time. We aim to make a case for stronger legal privacy protection for North Carolina residents by analyzing the state's voting records, provided by the North Carolina State Board of Elections (NCSBE). The following Privacy Impact Assessment (PIA) was inspired by PIA templates by the US Department of Homeland Security, Federal Trade Commission PIA Templates, the Florida PIA written by Group 6, and the North Carolina PIA written by Group 25 [1], [2], [3], [4].

1.2 Describe the voter registration system for North Carolina.

1.2.1 About the North Carolina State Board of Elections

The North Carolina State Board of Elections (NCSBE) is responsible for overseeing and administering the elections process in North Carolina [5]. The NCSBE enforces election laws and publishes rules and regulations governing election processes [6].

1.2.2 About the County Board of Elections

Each of North Carolina's 100 counties has a County Board of Elections with five members who are members who are registered voters in that county [7]. Four of the members are appointed by the NCSBE and a chair for each county board is appointed by the governor [7].

The NCSBE and the county boards of elections have a hierarchical relationship with the NCSBE operating as a governing body and each County Board of Elections operating at the local level [7].

The County Boards of Elections responsibilities include conducting local elections, operating voting sites, and maintaining voter registration lists for their respective counties [7]. Policies, procedures, and regulations implemented by each County Board of Elections must be consistent with those established by North Carolina Law and the NCSBE [8]. The State Board of Elections works with the County Boards of Elections offices to ensure elections are conducted lawfully and fairly [7].

1.2.3 NCSBE Divisions

Voter Administration: This division provides general supervision to 100 County Board of

Elections for election related tasks such as certifying results, voter outreach, registration, absentee voting, education/training, investigation/audits, legal matters, and implementing voting policies and procedures [6]. The division also implements voting policies and procedures and provides guidance to Election Day workers [6].

Voting Systems: This division provides general supervision to 100 County Board of Elections for administering, certifying, and maintaining voting systems including NCSBE voting equipment, voting systems software, tabulators, direct record voting equipment and election night reporting software [6].

Campaign Reporting: This division enforces campaign finance laws by reviewing and auditing campaign finance reports [6].

Information Systems: This division implements and manages the statewide election information management system [6]. The division maintains and secures databases, develops and maintains election-related websites, and ultimately provides technical support for NCSBE operations [6].

1.3 How is voter registration information managed?

North Carolina designed a statewide election information management system in 1998 that was officially established in 2006 [9]. SEIMS is a program comprised of a network of data servers in the NCSBE offices and County Boards of elections offices. Each of the 100 counties has a server and identical software installed locally on their workstations [6]. The SEIMS program copies all the information stored on county servers and instantly transfers the copied data to the statewide voter registration database [6]. As of 2021 the NCSBE decided to retire computer servers that hold voter registration data across all 100 county boards of elections and migrate the information to Microsoft's cloud platform. We have not confirmed that the information has been fully migrated since then. Therefore, we have included a data flow diagram with the original SEIMS system (see **Figure 7.1**) and a dataflow diagram that represents a cloud migration (see **Figure 7.2**).

1.4 What legal authority allows for the collection, maintenance, or dissemination of information for this project?

1.4.1 National Voter Registration Act of 1993 (NVRA)

The National Voter Registration Act of 1993 (NVRA) is a federal law that was enacted to expand voter registration opportunities and increase voter participation [10]. Section 8 of the law outlines requirements for how states maintain voter registration lists for federal elections:

- Applicants are notified whether their voter registration applications were accepted or rejected [10]
- Voter registration lists are kept accurate and current, such as identifying persons who have become ineligible due to death or relocation [10]
- Citizens are not removed from registration lists for failing to vote [10]
- Citizens are not removed from registration lists for changing place of residence unless
 - Registrant has relocated outside the jurisdiction of the registrar [10]
 - Registrant has failed to respond to a notice from the registrar and has not appeared to vote and correct the address in an election during a certain period [10]

Most notably, the NVRA requires states to maintain records of accurate and up-to-date voter lists for public disclosure for at least two years [11].

1.4.2 Help America Vote Act (HAVA)

With the exception of North Dakota, all states are required by the Federal Help America Vote Act (HAVA) of 2002 to create a centralized and computerized voter registration list. The database must include the registration details and names of all legally registered voters within the state [12]. However, HAVA does not explicitly outline any restrictions on information a state can collect for each voter [13].

1.4.3 North Carolina Law

North Carolina's Elections and Election Law mandates that voter registration information is made public record [14]. According to Section 132-1 of the North Carolina General Statutes, public records are "the property of the people" and it's the State's policy that "the people may obtain copies of their public records and public information free or at minimal cost unless otherwise specifically provided by law" [15].

2. Data Type, Sources, and Use

2.1 Specify the types of Personally Identifiable Information (PII) that are collected in the project.

Section 163-82.10 of the North Carolina General Statutes considers the following collected data “Personal Identifying Information” [16]:

- Full or partial social security numbers
- Dates of Birth
- Identity of the public agency at which the voter registered
- Email addresses
- Drivers license numbers

However, the National Institute of Technology (NIST) considers any information that could be used to find someone’s identity, either by itself or combined with other records [17]. In accordance with NIST standards, we consider all voter registration data collected by North Carolina (See **Figure 2.1**) to be PII.

2.2 What are the sources of information in the project? How is this information collected?

North Carolina has implemented all aspects of the National Voter Registration Act [18]. As a result there a number of North Carolina Agencies where a citizen can complete their voter registration including: Division of Motor Vehicles (DMV), Division of Services for the Blind, Division of Services for the Deaf and Hard of Hearing, Division of Health Benefits, Division of Child and Family Well-Being, Division of Social Services, Division of Rehabilitation Services, Division of Employment Security, Division of State Operated Healthcare Facilities [19]

Applications can be submitted online, in person, or by mail [20].

Table 2.1 lists all voter registration data elements. The source of a data element is either directly collected by the user when they submit an application or generated by the system. The system includes the state of North Carolina and all entities/resources involved with the collection, maintenance, and dissemination of voter registration data.

Table 2.1: Voter Registration Data [21]

Data	Source	Accessibility
County ID	System	Public Record
Count Name	System	Public Record
Voter Registration Number	System	Public Record
County	System	Public Record
North Carolina Identification Number	System	Public Record
Last Name	Voter	Public Record
First Name	Voter	Public Record
Middle Name	Voter	Public Record
Suffix Name	Voter	Public Record
Registration Status Code	System	Public Record
Registration Status Description	System	Public Record
Registration Status Reason Description	System	Public Record
Residential Address	Voter	Public Record
Mailing Address	Voter	Public Record
Full Phone Number	Voter	Public Record
Confidential Indicator (By General Statute certain data is confidential record)	System	Public Record
Registration Date	System	Public Record
Race	Voter	Public Record

Ethnicity	Voter	Public Record
Political Party	Voter	Public Record
Gender/Sex	Voter	Public Record
Year of Birth	Voter	Public Record
Age at end of year	Voter	Public Record
Birth state	Voter	Public Record
Driver's license (Y/N)	Voter	Public Record
Precinct Name	System	Public Record
Municipality Jurisdiction	System	Public Record
Ward Jurisdiction	System	Public Record
Congressional District	System	Public Record
Superior Court Jurisdiction	System	Public Record
Judicial District	System	Public Record
NC Senate Jurisdiction	System	Public Record
NC House Jurisdiction	System	Public Record
County Commissioner Jurisdiction	System	Public Record
Township Jurisdiction	System	Public Record
School District	System	Public Record
Fire District	System	Public Record
Water District	System	Public Record
Sewer District	System	Public Record

Sanitation District	System	Public Record
Rescue District	System	Public Record
Municipal District	System	Public Record
Prosecutorial District	System	Public Record
Voter Tabulation District	System	Public Record
Voter Signature	Voter	Public Record
Full Birthdate	Voter	Confidential
Social Security Number	Voter	Confidential
Driver's License Number	Voter	Confidential
Identity of the public agency at which the voter registered	System	Confidential
Email Address	Voter	Confidential

2.3 What is the purpose for collecting the information above?

It is the state's responsibility to formulate methods that maintain the integrity of our elections. Public voter records are generally kept public to establish transparency between the government and its citizens and to prevent election fraud [22]. Executive director of NCSBE Karen Bell asserts that the ability for the public to audit voter registration data and subsequently challenge the legitimacy of someone's voter registration status is essential to preserve the democracy of North Carolina's election processes [23].

Public voter records are especially useful for political campaigns, pollsters, academic researchers and journalists. These individuals use voter records for analyzing election trends and voter behavior. Notably, insights from voter files help facilitate voter outreach efforts by political campaigns and non-profit organizations [24].

PII that is confidential and not available to the public is mostly used to verify identities [23].

3. Data Access and Sharing

3.1 How does the determine if information should remain confidential?

Section 163-82.10 of the North Carolina General Statutes defines what information is public and what information is confidential [16].

3.2 Who can access voter registration records?

Any person is able to access the public voter registration records for North Carolina. These records can be directly downloaded with no fee from the NCSBE website (See **Figure 3.2A**) [25]. This differs from some states such as Maryland, where only registered voters of the state are able to access the database, or Delaware where only certain political entities are able to access the registration records for free [26].

Confidential information is redacted and only accessible by authorized personnel of the state.

Figure 3.2A: Screenshot of Voter Registration Data on NCSBE Website

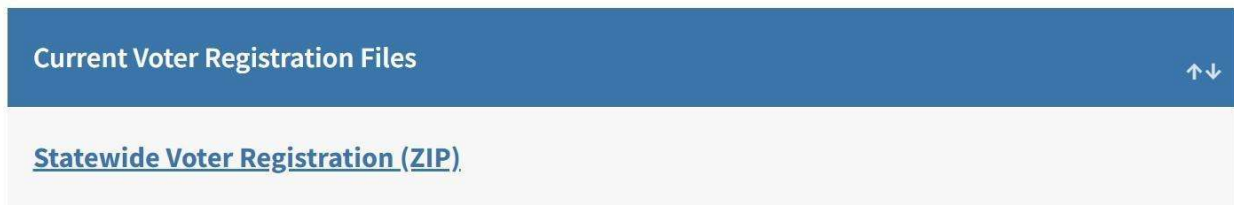
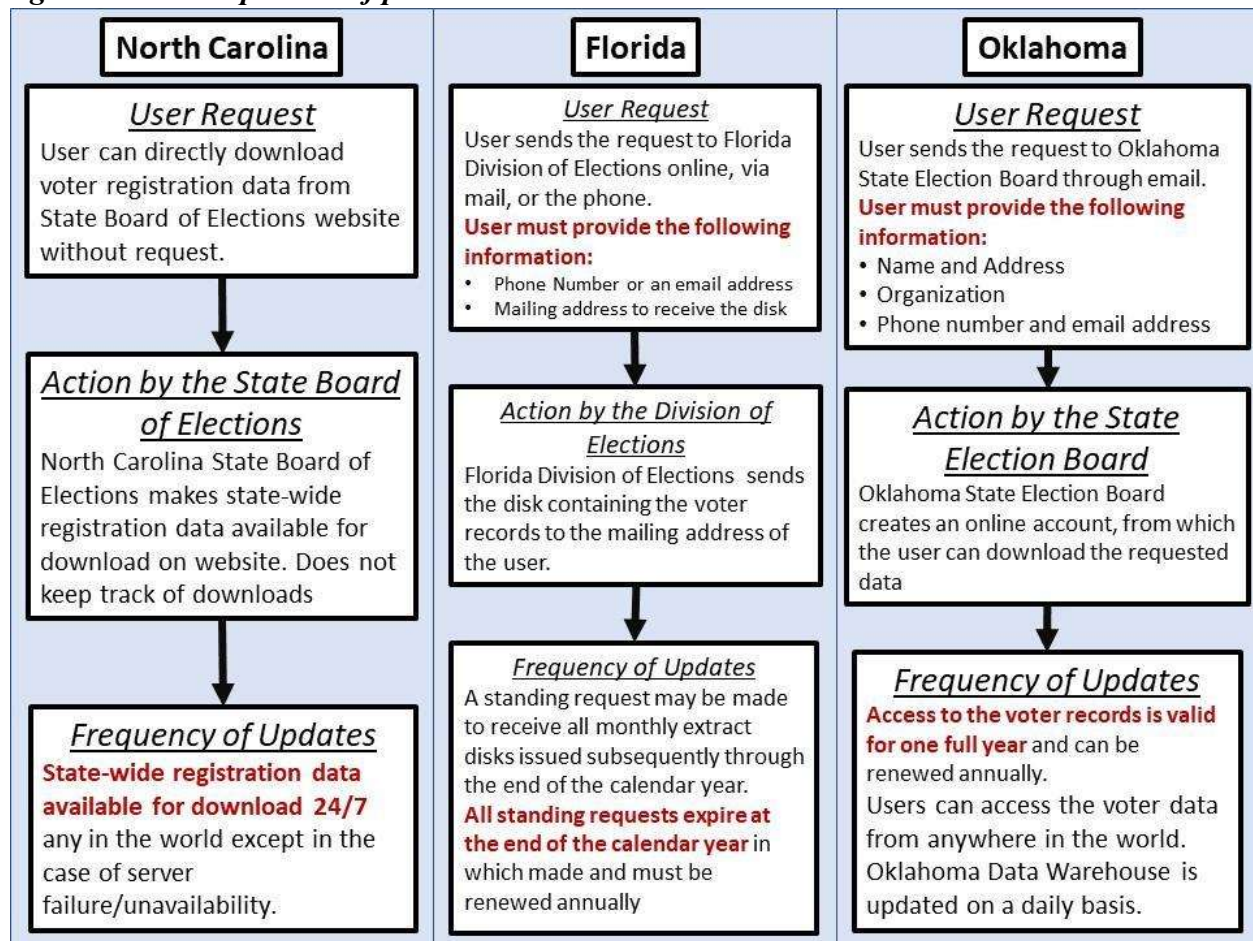


Figure 3.2B compares the procedures to obtain voter records in North Carolina, Florida, and Oklahoma [3].

Figure 3.2B: Comparison of procedures to obtain voter records.



Karen Bell mentioned that North Carolina hopes to join state to join the Electronic Registration Information Center (ERIC) [23]. ERIC is a partnership among multiple states that utilizes a smart and secure data-matching tool to enhance the accuracy and efficiency to state voter registration systems [44].

Through ERIC, states collaborate by sharing voter registration information to enhance the integrity of their voter lists [44]. The organization employs data matching across states to identify potential duplicate registrations, voters who have moved out of state, or deceased voters [44]. This information is then shared with election officials, enabling them to update voter rolls in accordance with federal and state laws, ensuring accuracy and compliance [44].

3.3 How are individuals notified prior to the collection of their PII?

In the phone number section of the voter registration form, individuals are warned that their phone number may become public record [27]. However, there is no such warning that other parts of the form will also be publicly available.

Most of this section was taken directly from reference [4]

3.4 What opportunities are available for individuals to consent to use or decline to provide information?

Voters are not required to provide all the information presented on the voter registration form. Required information includes: Name, date of birth, residential address, and mailing address. Registrants do not have the option to decline to provide this information. However, registrants can choose whether to provide their phone number, email address, driver's license number, last 4 digits of social security, race, gender, ethnicity, and political party affiliation [27].

Most of this section was taken directly from reference [4]

3.5 How can individuals redact some of their PII?

In cases where voters believe their personal safety would be in danger if their address were to be publicly available, individuals can submit a request to redact their address from the publicly available voting records. However, they must have “either 1) a copy of a 50B protective order; 2) a restraining order; or 3) a current and valid Address Confidentiality Program authorization card issued, according to the provisions of Chapter 15C of the General Statutes” [28]. Furthermore, they must also write a signed statement expressing that either their or their family member's physical safety would be threatened if their address were publicly available.

Most of this section was taken directly from reference [4]

3.6 Are individuals able to access their PII?

As discussed earlier, North Carolina voting registration records are publicly available to everyone. Individuals can view their personal information by downloading and looking through the voting records or by using the Voter Search available at the North Carolina State Board of Elections website.

Most of this section was taken directly from reference [4]

3.7 Can individuals correct inaccurate information?

North Carolina Division of Motor Vehicles customers are able to update their address and party affiliation through an online voter registration application. Additionally, all North Carolina residents are able to update their name, address, and party affiliation by mail [29].

Most of this section was taken directly from reference [4].

4. Data Accuracy and Security

4.1 Are there procedures in place to ensure that the information maintained is accurate, complete, and up-to-date?

There are several processes that the NCSBE conducts to ensure that the information in the voter database is accurate.

One of these processes includes Biennial List Maintenance. If a county board has not had contact with a voter for two federal election cycles, and the voter has not voted, an address confirmation will be sent in the mail [30]. If the voter does not return the mailing, then the voter will be marked inactive [30]. If the voter shows up to vote, their status will be updated [30]. If there has been no contact after four election cycles, then the voter is removed from the registration list [30].

The North Carolina State Board provides the county boards of elections with change of address data from the U.S Postal Service [30]. County boards are responsible to send voters a mailing to the new address to confirm whether they have an unreported change of address [30]. This is an opportunity to allow voters to update their information within a county, or notify the county that they have moved outside of that county [30].

Most of this section was taken directly from reference [4]

4.2 Are there administrative procedures and technical safeguards in place to protect the data in the project?

There are a number of measures that the NCSBE takes to ensure the security of SEIMS. The cybersecurity actions that NCSBE highlights include:

- “Conducting regular security assessments against its systems to identify and mitigate identified vulnerabilities before they can be taken advantage of by attackers” [31]
- “Physical security reviews at the state and county levels” [31]
- “Regular external vulnerability scanning and remediation of any findings” [31]
- “Regular infrastructure system patching” [31]
- “Formation of security policies in alignment with the N.C. Department of Information Technology” [31]
- “Incident response planning, tabletop exercises, and awareness training” [31]

- “Extra cybersecurity monitoring and response by all partners during election events” [31]
- “Regular receipt and analysis of information and alerts related to cybersecurity risks” [31]

To mitigate password related risks, the NCSBE utilizes multi-factor authentication [23].

SEIMS is currently over 20 years old and the source is out-of-date [32]. The counties and NCSBE have hoped to upgrade their system “for the better part of a decade” but they have lacked the funding and staff [32]. The NCSBE recently conducted an analysis of the organization’s cybersecurity status using the National Institute of Standards and Technology Cybersecurity Framework as a guide [31]. This endeavor raised awareness of cybersecurity risks and identified measures to mitigate those risks [31]. As a result, the State Board developed a roadmap to enhance election cybersecurity in North Carolina going forward [31].

As of 2021, the NCSBE plans to use approved federal funds through the Help America Vote Act to update their software and bolster the security of their system [32]. In 2021 a three year plan was enacted to “make cybersecurity practices more consistent across all 100 county boards of elections, streamline updates to the back-end systems, write new software for use at the county and state levels, and replace the state servers with new hardware” [32].

The most substantial part of this plan is to retire computer servers that hold voter registration data across all 100 county boards of elections and migrate the information to Microsoft’s cloud platform [32]. According to Brian Neesby, chief information officer for the NCSBE, “the migration will improve our security posture because we will limit the surface area of attack; the cloud will allow us to exert easier control over our security practices” [32].

We have not confirmed the progress of these changes since the plans were announced. The process would cost nearly \$3 million dollars, and on April 3, 2023, Executive Director Karen Bell mentioned the NCSBE is still struggling to implement upgrades to their technology due to federal budget cuts [23].

4.3 How long is data retained in the system/project? What procedures are there for disposing of this data?

Voter registration data is regularly removed from the current voter registration records. There are a variety of ways that a voter’s information gets removed from the current records. Voters that move to different states are removed from their previous state’s records. This is usually discovered through data sharing agreements that North Carolina counties have with different states [33].

Voters who have passed are routinely removed from the voter database [30]. This information is shared from the NC Department of Health and Human Services [30]. The NC Department of Public Safety and US attorney's offices provide information to remove felons from the voter database [30]. Furthermore, registered voters are removed from the database if they haven't voted in more than ten years [34]. Finally, voters are also able to directly cancel their registration.

Previous voter registration records are permanently available through the North Carolina State Board of Elections website. "Snapshots" of the voting registration records for a given year can be accessed going back to 2005. Thus, omitted/removed data from the current records will remain publicly available.

Most of this section was taken directly from reference [4]

5. Auditing and Accountability

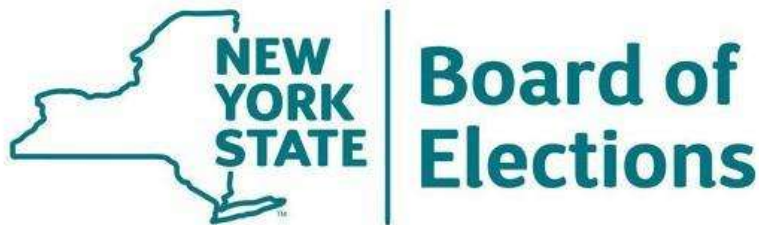
5.1 How does the project ensure that the information is used in accordance with stated practices in this PIA?

If someone simply publicly discloses information that is considered confidential according to North Carolina Law, they can't be sued [16]. However, this protection doesn't apply if the person sharing the information did so intentionally, carelessly, or deliberately misused information that would normally be grounds for a lawsuit [16].

North Carolina doesn't provide notification or explicit legislation to prevent misuse of public voter records. For example, the New York State Board of Elections provides a notice of NYS Election Law Sec 3-103.5 against the misuse of voter registration information with the resulting consequence being a misdemeanor [35]. This notice appears on a form that must be submitted to access their voter registration data. A requester is required to provide their name, address, and email which leaves an audit trail if a requester is found guilty of data misuse (See **Figure 5.1**) [36].

Most of this section was taken directly from reference [4]

Figure 5.1: New York Voter Request Form.



Request for Access to Public Voter Registration Data

Instructions: All persons submitting a request to access public voter registration information must complete the following:

** indicates a required field*

Name *

Address *

Street Address

CityState / Province

Postal / Zip Code

Day Phone

-
Area CodePhone Number

E-mail *

NOTICE: NYS Election Law Sec 3-103(5) prohibits using information derived from voter registration records for non-election purposes. The applicant hereby requests access to the voter registration records requested, accepts and understands the conditions outlined above and certifies that they have a right of access to the records. Any person who knowingly and willfully violates this provision is guilty of a misdemeanor (EL SEC 17-168)

☐ Accept ☐ Decline

6. Privacy Risks and Recommendations

6.1 Considering the PII collected, what privacy risks have been identified and how have they been addressed?

6.1.1 Access Control & Sensitive Data

One of the most pressing privacy concerns regarding voter registration data for North Carolina is the lack of control over who can view the data. Because the data can be directly downloaded from a website without providing any user information, there is no way to track potential misuses of this data. Thus, there is no way to revoke access to voter registration records for parties that have maliciously used the data.

Another identified privacy risk is the public availability of sensitive information such as residential addresses and phone numbers. Moreover, registrants cannot decline to provide an address. This is significant because they are required to provide sensitive information which is then published for anyone to see.

6.1.2 Legacy Code

North Carolina's reliance on legacy software presents risks. North Carolina's Statewide Elections Information Management System was built in 1998. The NCSBE website currently claims that actions are taken to ensure cybersecurity including regular assessments to identify and mitigate vulnerabilities as well as regular system patching. In spite of these claims, Executive Director has expressed that the majority of the technology system has yet to be modernized since its conception [32]. According to 2021 information technology (IT) reports by the NCSBE, "modernization is necessary for functional and security reasons" because the current system "is an antiquated coding and software platform that has reached end-of-life for software and hardware" [32]. If information technology applications and systems are "subject to predictive faults, memory and functional limitations and inadequate reliability", then privacy of confidential data is in jeopardy [32].

6.2 Threat and Risk Analysis

6.2.1 Physical Abuse

A prevalent issue that the United States is currently dealing with is a widespread outbreak of domestic violence. In North Carolina, 35.2% of women and 30.3% of men face the trauma of physical or sexual violence by an intimate partner at some point in their lives [37]. Stalking is a substantial contributor to the crisis as 1 in 7 women and 1 in 18 men in the U.S. will experience stalking [7]. The inclusion of an individual's name and residential address exposes victims of domestic and sexual abuse. While North Carolina has implemented an Address Confidentiality

Program (ACP) that allows victims to redact their residential address, the approval process is difficult and does not guarantee privacy for victims. As previously discussed, to apply for North Carolina's ACP, individuals must obtain a protective order that specifies the risk of their physical safety if their personal address is publicly available and submit it to the local county board of elections [13]. However, an approved applicant may still face unwanted exposure due to the availability of other personal information in the public domain. Victims of domestic violence could also face the issue of not having any official records against their attackers. Furthermore, being able to request redaction of their personal information is a retroactive measure, not preventative, and could still enable stalkers to target other victims. Thus, making this information available to the public still poses a risk to individuals, despite allowing some individuals to redact their information.

Another noteworthy threat is identity theft. Attackers only need as little information as a zip code to steal identities, carry out scams, and engage in other fraudulent activities [38]. Subsequently, the inclusion of name, address, income level, and ethnicity make North Carolina's publicly available voter registration data an easy access resource for thieves.

6.2.2 Legacy Code

One of the main security risks of legacy code is its vulnerability to known and unknown security threats. Legacy code may have been developed using outdated coding practices, libraries, or frameworks that can contain security flaws not known or addressed at the time of development [39]. These vulnerabilities can be exploited by malicious actors to gain unauthorized access, steal data, or disrupt the system [39].

Over time developers who were familiar with the legacy code eventually leave the organization, leaving behind code that may not be well-documented or understood by current developers [39]. This can make it challenging to identify and fix security issues and make it easier for attackers to exploit vulnerabilities.

Additionally, legacy code may not meet current security standards and compliance requirements [39]. As regulations and industry standards evolve, legacy code may lack the necessary security controls to protect confidential data and comply with laws and regulations like the ADPPA.

6.2.3 Cloud

There are some threats that are particularly prevalent when organizations use cloud platforms instead of on-premises resources. These include misconfigurations, insider threats, hijacking accounts, and network threats.

Misconfigurations are commonly exploited vulnerabilities in cloud infrastructures which can be exploited for various threats. Misconfigurations are particularly dangerous because of their potential to leave cloud-based systems and data exposed to bad actors as they account for 15% of initial attack vectors in security breaches [40]. In a cloud environment, misconfigurations can allow attackers to gain unauthorized access to sensitive data, compromise applications, and even take control of the cloud infrastructure. For example, a misconfigured firewall rule may allow unauthorized traffic to access a cloud-based database, exposing sensitive data to attackers. Similarly, misconfigured user permissions may allow attackers to escalate privileges and gain access to confidential information. Cloud environments are dynamic, complex, and have multiple users and applications accessing resources at any given time. This complexity not only makes it challenging to properly configure and manage the system, but it also allows misconfigurations to go undetected for extended periods of time. In 2020 research showed that 65% of cloud network security issues [40]. Through exploiting misconfigurations, attackers can cause significant damage to an organization and its clients before remediation. A comprehensive and proactive approach is necessary to mitigate this threat.

Migrating to the cloud often involves reliance on a specific cloud service provider's infrastructure, tools, and APIs. Moreover, any disruptions or issues with the provider's operations can impact the availability and performance of cloud-based applications and data. This may result in vendor lock-in. According to a Stratoscale, more than 80% of enterprises reported moderate to high levels of concern about being locked into a single public cloud platform [41]. If the NCSBE is unsatisfied with their current cloud provider, switching to a different provider or bringing the data back in-house may be complex, time-consuming, and costly. This could potentially lead to reduced flexibility and dependence on a single provider with unsatisfactory services.

The shared infrastructure risk must be considered as well. Cloud computing involves sharing resources such as computing power, storage, and network infrastructure with other clients. This can potentially expose the NCSBE to risks associated with co-tenancy including unauthorized access to data or data leakage [42].

6.3 Recommendations

6.3.1 Regarding Accessibility & Use

In the case that the state prefers to keep voter information publicly available, the eligibility criteria to redact addresses should require a lower burden of proof for applicants. This reform would reduce registrants' exposure to threats, particularly for individuals with high privacy risk.

A more aggressive approach to protecting voter privacy involves making voter registration records accessible only to campaigns, political parties, and entities deemed appropriate by the state. This is how Massachusetts handles their voter records [4]. To increase security, North Carolina could require the requester of the data to disclose certain information before accessing the voter list. For instance, in California individuals who wish to obtain voter registration data must provide their name, address, telephone number, driver's license number, group affiliation, and a statement of the intended use [4]. By obtaining this information, the government would have a clearer understanding of who has access to this critical data and could potentially stop wrongful usage and access.

Our final recommendation is to mandate that voter records only be used for non-commercial purposes. At the very least, a person has to submit their name and email to receive the the registration data. The registration data should be sent as a downloadable link to their email so the state can track downloads. Entities that are granted access to the data should not be allowed to sell it to companies or use it for non-electoral reasons. Presenting consequences for illegal use of voter data would deter exploitation. New York's Law Sec 3-103.5 could be an effective guide [4].

6.3.2 Regarding Legacy code

The first step we recommend is to identify and remove as much inactive code as possible. This will eliminate potential hiding spots for malware and cyber-threats and they won't go unnoticed in the system. It is critical to document changes made to policies, regulations, and software so that there are no gaps in the maintenance of the integrity of the system.

Implement a robust and comprehensive testing strategy that includes unit testing, integration testing, and regression testing to identify any defects or vulnerabilities.

Create comprehensive documentation that includes the purpose, functionality, and limitations of the legacy code. This can help future developers understand the codebase and reduce the risk of misinterpretation or mismanagement.

Finally, invest in training for the development teams to ensure that they have the necessary skills and expertise to work with legacy code effectively. This can include providing training on modern coding practices, security best practices, and documentation standards.

6.3.3 Regarding Cloud Integration

Despite the threats and risks we've identified, we recommend and support the NCSBE in its decision to migrate its voter registration system to the cloud and to continue the process if not fully done. A cloud-based system offers numerous benefits that significantly improve the overall functionality and effectiveness of the NCBE's registration process.

Firstly, by leveraging the flexible scalability of cloud computing, the NCSBE can more easily adjust the system's resources based on the fluctuating demands of voter registration, especially during peak election periods [43]. This ensures that the system remains efficient and reliable even during high traffic times. Most importantly the risk of system failures is minimized so confidential data remains secure as it travels across networks.

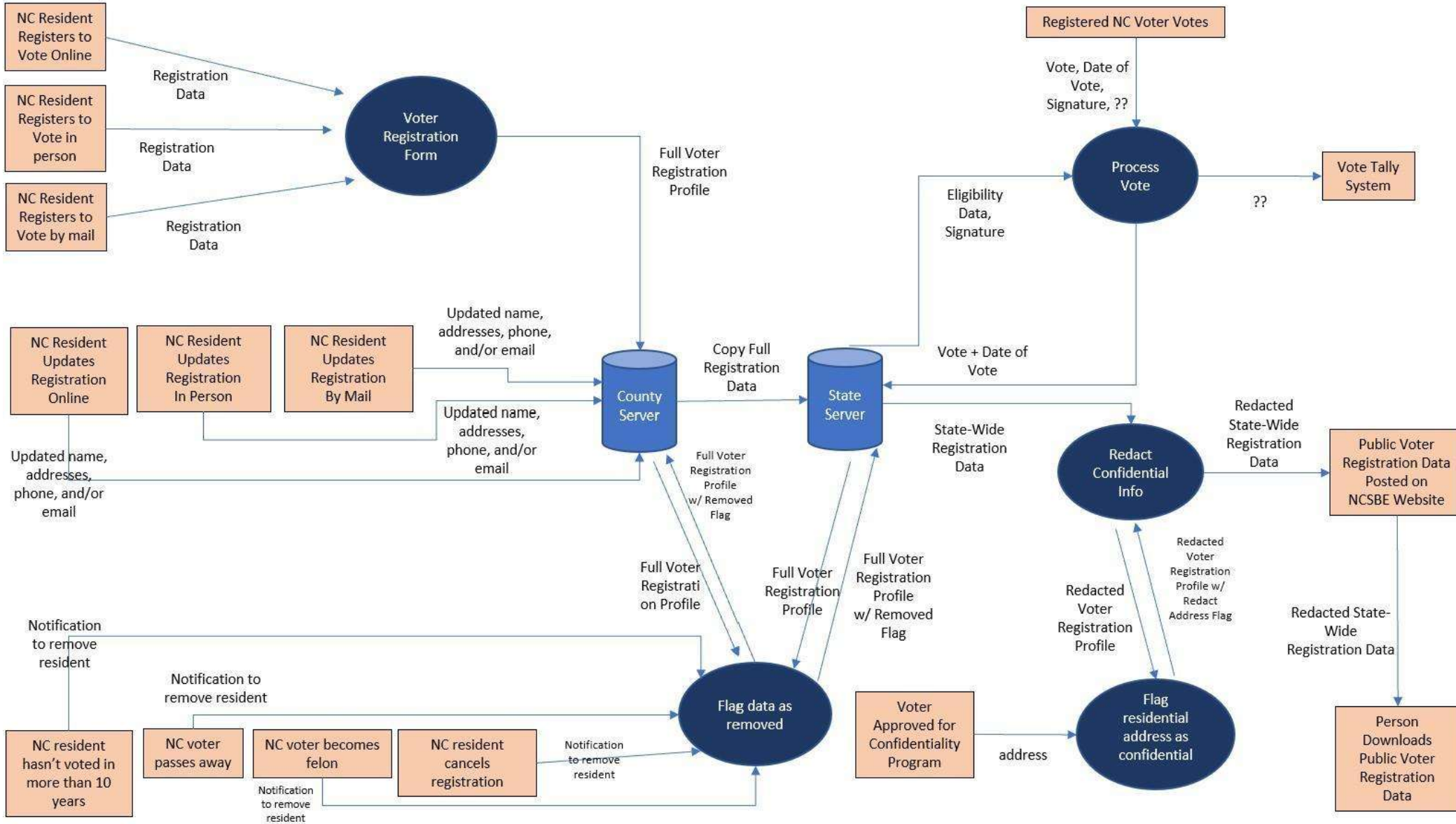
Secondly, migrating to the cloud allows the NCSBE to take advantage of the latest security measures provided by cloud resource providers. In the past, governments have been wary about putting sensitive data on cloud resources because they worry about who owns the data and who is responsible for keeping it safe [32]. However, companies like Microsoft currently have advanced technology that surpasses what local governments can typically offer [source]. Additionally, there are specialized products designed for government use. Cloud platforms typically have robust security protocols including multi-factor authentication, encryption, and regular security updates [source]. All these enhance the protection of confidential voter data from potential cyber threats.

Migrating to the cloud can also provide cost savings for the NCSBE. Companies using cloud computing save 20% annually on infrastructure costs [43]. Cloud-based solutions eliminate the need for on-premises infrastructure, maintenance, and upgrades. This ultimately leads to a reduction in operational costs [43]. Instead, the NCSBE can utilize a subscription-based pricing model offered by cloud-service providers, allowing for predictable and scalable costs that can be budgeted effectively. Most notably, these cost savings reduce the impact on the security of the system as a result of federal budget cuts.

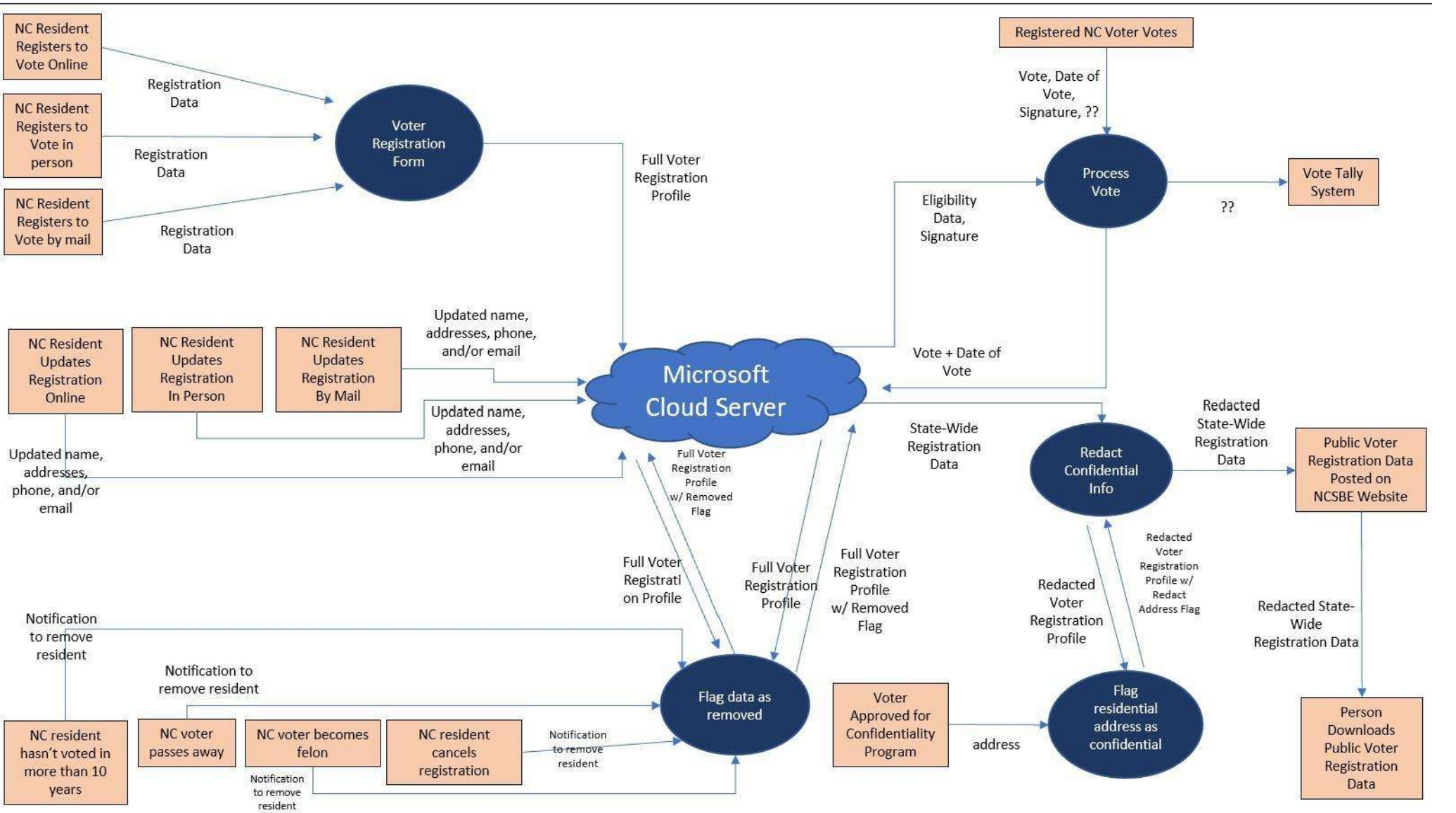
7. Data Flow Diagrams

7.1 Data Flow Diagram With County Servers

7.1 Data Flow Diagram with County



7.1 Data Flow Diagram Cloud



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Comparison of the North Carolina Voter registration database with the Massachusetts voter registration database

The table below compares the data elements collected by the NC voter registration database with the data elements collected by the MA voter registration database.

Fig. 1 Information collected by both systems.

Data element	Collected by NC	Collected by MA	Public NC information
Voter Name	Y	Y	Y
County voter ID	Y		Y
Residential address	Y	Y	Y
Mailing address	Y	Y	
effective dates of registration		Y	
Occupation		Y	
Veteran Status		Y	
Nationality, if not a citizen of the U.S.		Y	
residence on January first in the preceding year and in the current year		Y	
Sex	Y		Y
Race	Y		Y
Age but not date of birth	Y		Y
Date of birth	Y		
Party affiliation	Y		Y
precinct name	Y		Y
precinct identification code	Y		Y

congressional district, senate district, representative district	Y		Y
county commissioner district, city governing board district, fire district, soil and water conservation district	Y		Y
voter history including primary, general, and special districts	Y		
The signature of the voter	Y		
Cumulative data based PPI	Y		
Full or partial social security numbers	Y		
dates of birth	Y	Y	
the identity of the public agency at which the voter registered	Y		
any electronic mail address submitted	Y		
photocopies of identification for voting	Y		
and driver's license numbers	Y		

In comparing the MA voter registration database, the MA central registry of voters, and the NC State voter registration system, we found some key similarities and differences:

Both systems collect basic information that is used to identify the voter. The data element collected by both systems for this purpose includes Voter name, address, and date of birth.

In addition to the basic information collected by both systems mentioned above, each system collects different additional auxiliary information about the voter, which can be used to better identify a voter. In the case of NC, more personal identifying information(PII) are collected, including the voter's sex, race, signature voting history, geo-location information, and etc. In the case of MA, information about the history of the residency and registration of the voter is collected, along with descriptive information about the voter, such as their occupation and veteran status.

Compared to the MA central registry, the NC State registration database makes much more of its data openly accessible to the public. NC makes the voter's name, county ID, address, sex, race, age, party affiliation, and district information all a matter of public record[1], whilst in MA the voter's information is only made available to state party committees, statewide

candidate committees, state ballot question committees, the jury commissioner, adjutant general and other individuals/agencies the secretary of state designates, as well as local election officers at each polling location [2]. The reason for this considerable difference in the accessibility of voter data maybe can be explained by the philosophy and rationale behind the electoral system of both states. From our interview with board members of the NCSBE, the reason for such a extensive information about voters to be made public is because, firstly, they believe in the importance of transparency in the operations of the state, and thus the information is mandated by law to be made a public record; and secondly, and perhaps more crucially to our case here, they believe that every person can challenge a voter at the polling station for his/her eligibility, and and they believe this to be a fundamental principle of their commonwealth, and the publication of voter information enables this process [4]. We hypothesize in MA this duty of checking and challenging the eligibility of the voter is carried out by the local election officers at each polling location since information is disclosed to them.

The MA central registry of data is in an agreement to share data with the Electronic Registration Information Center, Inc (ERIC), the information shared here includes, but is not limited to voter names and addresses. Whilst NC now is not in an agreement with ERIC. This could pose some risks to the security of MA's voter data if they do share other PII with ERIC. Both states have programs to protect certain individuals by keeping their voter information confidential. In MA, these individuals include ACP participants, law enforcement or public safety personnel upon request [3]. But in NC, only ACP participants are currently being offered this privilege, with the requirement of a court order, making the NC database much less restricted.

One thing that caught our attention was that in the MA statute establishing the MA central registry, it is stated that the registry shall contain voter information "of every person three years of age or older in the commonwealth". This could potentially make the MA central registry a more comprehensive system of record as it would include a higher percentage of the population compared to the NC database.

With regard to the miscellaneous/commercial/political applications of the data collected in both databases, with the data did not make a public record, personal miscellaneous use of the MA data should not be comparable to that of the NC data. Similarly, it should be harder for companies to get access to the MA data compared to the NC data. As for their political uses, as the MA records are made public to state party committees etc., there should not be a significant difference between the two in this aspect.

Overall, in comparing the data privacy aspect of the MA central registry and the NC state voter registration database, and the MA central registry provides more privacy and protection for their voters' data, but there are some areas in which they are weaker than NC, which could raise concerns about the overall security of their system. As for the case of NC, although they

intend to not publish the PII of their voters, their publication of an extensive list of voter data makes the privacy and information of their voters very vulnerable.

References

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- [2] Mass. Gen. Laws Ch. 51 § 4, §47C, §37, §44
- [3] NCSL, “Access to and Use of Voter Registration Lists”, February 27, 2023 [Online]. Available: <https://www.ncsl.org/elections-and-campaigns/access-to-and-use-of-voter-registration-lists>
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APPENDIX

Invite Email Thread:

Jinks, Matthew D

From: Jinks, Matthew D
Sent: Friday, March 24, 2023 1:01 PM
To: Anderson, Stella
Subject: RE: [External] Georgia Tech Interview Inquiry
Hi Ms. Anderson,

I appreciate the feedback on the questions! Considering your insight, I agree that speaking with Ms. Karen Brinson Bell would be very beneficial to fulfill the technical aspects of our assessment. We would be very grateful if you would reach out and let her know we would like to meet with her sometime between now and April 7th.

Thanks!

Matthew Jinks
Georgia Institute of Technology
B.S. Computer Science
Email: mjinks3@gatech.edu



From: Anderson, Stella <Stella.Anderson.Board@ncsbe.gov>
Sent: Friday, March 24, 2023 12:42 PM
To: Jinks, Matthew D <mjinks3@gatech.edu>
Subject: Re: [External] Georgia Tech Interview Inquiry

I appreciate the questions you have provided in advance and will do my absolute best to address these with the knowledge I have. I do wonder if, for some of these more technical questions re data security, your group would benefit from talking with our Executive Director, Karen Brinson Bell.

She is the designated head administrator with state-wide election administration oversight and the chief elections officer in our state. As many states (including GA) designate the Secretary of State as the chief elections officer, in NC the State Board of Elections and the Executive Director have that authority. I can speak with her if you want me to see if she could be available for any remaining questions that I might not be able to answer. Would you like for me to reach out to her?

From: Jinks, Matthew D <mjinks3@gatech.edu>
Sent: Friday, March 24, 2023 12:17 PM
To: Anderson, Stella <Stella.Anderson.Board@ncsbe.gov>
Cc: Sagar, Vikram G <vsagar15@gatech.edu>; Zhang, Jingrui <jzhang3134@gatech.edu>; Idrees, Fahad <fidrees6@gatech.edu>
Subject: RE: [External] Georgia Tech Interview Inquiry

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Happy Friday Ms. Anderson!

As promised here is the link to our zoom meeting on Wednesday, March 29th from 2:00-2:30 pm:
<https://us05web.zoom.us/j/88171285941?pwd=VkJYalBvS1dNZzdqL1N4TVJkcCs0dz09>

For your convenience you should have also received a google calendar invite.

Additionally, I've attached a draft of interview questions to this email. The list is not final, and we may not get to every question due to time. You will receive an updated version of the list before the interview.

Thanks,

Matthew Jinks
Georgia Institute of Technology
B.S. Computer Science
Email: mjinks3@gatech.edu



From: [Anderson, Stella](#)
Sent: Thursday, March 16, 2023 10:43 AM
To: [Jinks, Matthew D](#)
Cc: [Sagar, Vikram G](#); [Zhang, Jingrui](#); [Idrees, Fahad](#)
Subject: Re: [External] Georgia Tech Interview Inquiry

2:00-2:30 will work. If using zoom please send the link to Anderson.stella0@gmail.com

Stella Anderson

From: Jinks, Matthew D <mjinks3@gatech.edu>
Sent: Wednesday, March 15, 2023 1:21:54 PM

To: Anderson, Stella <Stella.Anderson.Board@ncsbe.gov>
Cc: Sagar, Vikram G <vsagar15@gatech.edu>; Zhang, Jingrui <jzhang3134@gatech.edu>; Idrees, Fahad <fidrees6@gatech.edu>
Subject: RE: [External] Georgia Tech Interview Inquiry

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Thank you for getting back to us so quickly Ms. Anderson. We are excited to meet with you.

Do any of the following times on Wednesday, March 29th work best for you?

- 1:30-2:00 pm ET
- 2:00-2:30PM ET
- 2:30-3:00 pm ET

Best,

Matthew Jinks
Georgia Institute of Technology
B.S. Computer Science
Email: mjinks3@gatech.edu



From: Anderson, Stella <Stella.Anderson.Board@ncsbe.gov>
Sent: Tuesday, March 14, 2023 5:43 PM
To: Jinks, Matthew D <mjinks3@gatech.edu>
Cc: Sagar, Vikram G <vsagar15@gatech.edu>; Zhang, Jingrui <jzhang3134@gatech.edu>; Idrees, Fahad <fidrees6@gatech.edu>
Subject: Re: [External] Georgia Tech Interview Inquiry

I'm happy to interview. The end of next week or midweek the following week I could make work. Let me know what works for you in that timeframe.

Stella Anderson

From: Jinks, Matthew D <mjinks3@gatech.edu>
Sent: Tuesday, March 14, 2023 5:14:13 PM
To: Anderson, Stella <Stella.Anderson.Board@ncsbe.gov>
Cc: Sagar, Vikram G <vsagar15@gatech.edu>; Zhang, Jingrui <jzhang3134@gatech.edu>; Idrees, Fahad <fidrees6@gatech.edu>
Subject: [External] Georgia Tech Interview Inquiry

CAUTION: External email. Do not click links or open attachments unless you verify. Send all suspicious email as an attachment to [Report Spam](#).

Dear Mr. Anderson,

My name is Matthew Jinks. I am a student at the Georgia Institute of Technology pursuing a Bachelor's in Computer Science. I am currently enrolled in a course named Privacy Tech, Policy & Law. This course is an introduction to a wide range of privacy policy, ethics, and legal topics. Currently, we are learning about public policy as it relates to voting.

I am emailing you because for our latest project in Privacy Tech, Policy & Law we are required to interview a member of the North Carolina State Board of Elections to gain insights about public voter registries. I am a part of a project group, and we would appreciate it if we could interview you about your experience as a part of the North Carolina Board of Elections.

Given our project's upcoming due date, we would ideally like to speak with you before Friday, March 31st. If you would be willing to share 20-30 minutes of your time virtually over a video call for an interview, please let us know.

We look forward to hearing back from you.

Thank you in advance,

Matthew Jinks
Georgia Institute of Technology
B.S. Computer Science
Email: mjinks3@gatech.edu



Interview Transcript

[00:00:01.980] - Speaker 1

Okay. Can you hear me?

[00:00:06.100] - Speaker 2

Yeah, we can hear you.

[00:00:07.430] - Speaker 1

Okay. I do not know why I do not have video. I can maybe oh, that's because it's muted. That would help. Got it.

[00:00:21.460] - Speaker 2

So we're just waiting on Karen. Patrick says she's in a meeting, but I'll just go ahead and just thank you guys for taking the time to talk to us.

[00:00:31.100] - Speaker 3

I really appreciate it.

[00:00:32.490] - Speaker 2

Especially Ms. Anderson. You're responsive and Patrick and Karen hop on.

[00:00:39.450] - Speaker 3

We really appreciate it.

[00:00:41.760] - Speaker 1

Well, I knew right from the get go by the questions that I could probably answer some of them, but Karen and Pat would be the ones to better answer some of those more technical and data security kinds of things, so we can hopefully, through one or more of us, get those things covered.

[00:01:06.360] - Speaker 2

Sounds good.

[00:01:08.200] - Speaker 4

Just so you all know, Karen is the executive director of the State Board of Elections. Dr. Anderson is one of five State Board of Elections members and they're appointed by the governor and they kind of oversee the entire elections apparatus in North Carolina. I'm a member of the staff, Karen, who's going to be on shortly as the Executive director. She is appointed by the board members, including Dr. Anderson. And then I'm just a state employee at the public information director at the state board. So that's how it works. Dr. Anderson isn't quite as involved in the day to day operations of the agency, but she is responsible for the overall oversight of the agency and the.

[00:01:54.050] - Speaker 5

Karen's on now, I walked in to hear Pat say he's just the pio.

[00:01:58.800] - Speaker 1

Don't I know he's selling himself way short very much.

[00:02:07.880] - Speaker 2

Well, not everybody's here. I just want to reiterate to Karen, we just thank you guys for taking the time to talk to us.

[00:02:15.360] - Speaker 3

We really appreciate it.

[00:02:16.960] - Speaker 2

Thank you, Karen, for agreeing to speak to our class on Monday. Our professors are super excited for that. So that is really great. Really appreciate it.

[00:02:24.110] - Speaker 5

You may have launched something, you never know.

[00:02:28.320] - Speaker 2

We'll just give a brief introduction of who we are. We'll just say like, our names and majors. I'll go first. My name is Matthew Jinx. I'm an undergraduate at Tech. I'm pursuing my bachelor's in Computer Science and I'm graduating in May.

[00:02:46.790] - Speaker 6

I am Pahalidri. I am pursuing Masters in Cybersecurity public policy from Georgia Tech. And this is my first semester. Thank you.

[00:02:57.930] - Speaker 7

Hi.

[00:02:58.330] - Speaker 8

My name is Vikram Sagar. I'm a fourth year undergrad Computer Science major and I am graduating this December.

[00:03:12.790] - Speaker 7

I'm kind of being popular now. My name is I'll be graduating.

[00:03:29.450] - Speaker 2

So we'll just before we get into the interview and ask you guys about who you are, I just want to give you a brief overview of our class and the project. So it's a privacy course that we're taking, and the purpose of the course is to help us understand how privacy is defined, how it's protected, how it's managed in areas of technology business and policy and law. And we do that by doing assignments to help us understand the legal, ethical, and policy issues surrounding technologies that operate on sensitive data. And so for this project, we've been tasked with conducting a privacy impact assessment of voter registration records for a state, and we chose North Carolina. Ultimately, the goal of the assessment is to determine the risk associated with voter records and how the data could potentially impact the privacy of your citizens as a result of data misuse or exploitation, things like that. So I guess we'll start off could you guys just kind of tell us about the NCSBE and what your roles are? Patrick Conardi went into a little bit, but I guess starting with Karen.

[00:04:44.390] - Speaker 5

Yeah, happy to. So I've worked in elections since 2006, and so I've seen a lot of the policy, the work evolve greatly around the topic that you're looking into. FYI, because I have so much free time, I'm working on my master's in public administration, so we're having some of these discussions too. But our agency, I think Pat was touching on it, we're a little different than, say, the state of Georgia. Each state can structure their agencies in different ways. Most states, the elections fall under the Secretary of State. There are two states where it falls under the lieutenant governor because they do not have a secretary of state. And then there are ten states and territories where they are independent agencies. They do not fall under a secretary of state or lieutenant governor. They are independent agencies like the State Board of Elections. In North Carolina. There's the National Voter Registration Act MVRA that designates a chief election official. And so in the other state, the majority of the states, it's either the secretary of state or lieutenant Governor. In the other ten, it's someone else. In North Carolina, it's me as the executive director for our agency.

[00:06:14.870] - Speaker 5

So that's kind of how we're composed. So I think Pat was touching on our board members have a quasijudicial role primarily. They obviously are responsible for me being a good administrator, more than them having to be the administrators. So I keep them apprised of how the agency is operating. But they don't have to be involved in the day to day operations. But they do have to adopt policy at times. They do have to work as a judicial body who will make decisions on conduct of board members. We dealt with that yesterday. It could also be on challenges about voters or about the election protests, things like that. So it just depends on what's brought before the board. If complaints are filed, or protests or petitions or whatever it might be that brings it before the board. So that's an overview. Do you want me to touch on our role in voter registration or our role in all the components that we touch on?

[00:07:25.930] - Speaker 2

If you could talk about voter registration, I think that'd be good.

[00:07:29.500] - Speaker 5

Yeah. So there's a lot of hats that we wear in the conduct of elections. We even in North Carolina oversee campaign finance compliance. But of course, at the heart of elections is voter registration. In some states it's actually divided out. There would be an agency that handles voter registration and an agency that handles the conduct of elections. That's more at the local level. But in North Carolina we have at the state and at the local level the responsibility of doing both. So we maintain the voter registration database. So when someone registers to vote,

updates their registration, or we maintain the voter rolls through what we call list maintenance because someone has not been an active voter and they can move to inactive status. Someone's inactive for a longer period of time can be moved to removed status. Removed also occurs when we have an official notice of death or registration in another state, for example. So we are structured such that we have the state election information management system. Seams is what we shorten that to Seims. That's our in house database computer system, and within that is our voter registration database. So we process all voter registrations registrations that happen through other agencies like Department of Motor Vehicles, those agencies required through the MVRA.

[00:09:17.550] - Speaker 5

All that data comes in through our central system and then it's separated out by counties. We have 100 counties in North Carolina. So you register with a county officially within our state so that if someone moves from one county to another, we can update their registration and transfer it by having one centralized system. But that obviously prevents someone from being registered in more than one county. It provided that we can do an effective match of the data or have that alert the move occurred. It also keeps them from voting.

[00:10:00.170] - Speaker 1

In more than one county. What else would you want me to touch on there?

[00:10:11.410] - Speaker 2

Guys, I can add one thing really quickly just for clarity's sake. We have the State Board of elections, which is the five people, of which Dr. Anderson is one. We also have 100 county boards of elections which each have five members. And the county boards of elections are the ones who do the day to day processing of voter registration applications and voterless maintenance. But they all feed into the one database, the one central voter registration database that Karen talked about, which we call Seams.

[00:10:42.110] - Speaker 1

We have the It staff, the developers, coders testing staff and so forth that maintain the system. The users are the counties. And the other part that I guess we facilitate is we have an online form that people can register to vote if they are an existing DMV customer. That allows us to pull their signature in. If they want to download a voter registration form and complete it and send it in, then that's maintained through our state board website. That can also be available at the county website too. We are sort of the facilitator. We also receive a lot of actual voter

registration forms and we just scan them. They're not going directly into our system, but they're scanned so that they can be sent to the counties. And then they populate the data and look for do the verification process, which is there is a cross check with Social Security numbers and driver's license numbers, whichever one the voter provided. And then we do a verification mailing anytime someone registers or updates their information.

[00:11:58.150] - Speaker 3

Got you. So what all are the ways that you guys collect that voter registration data? Is it just through the application forms? Are there other ways you might just happen to update information?

[00:12:15.450] - Speaker 1

So registration or update to registration through one of the methods that I mentioned, an NVRA agency completing a form which could be in person at a voter registration drive or at one of those agencies using the form online is possible. There's the voter registration online form that we mentioned. That's a collaboration between us and the Department of Motor Vehicles. Those are somehow in. One of those methods is how someone's going to register to vote. But we are constantly in a data push pull for the maintenance or the list maintenance or role maintenance by working with the MVRA agencies, by working with the national change of address data that we receive. We also are required to do list maintenance following the federal general elections. So we do mailing to voters who have not participated in the last two federal elections based on response or lack of response. We will update our voter registration roles to reflect their status. They may remain active and be updated. They may be moved to inactive. It just depends on what response we get. We maintain that database to know who we mail to and then proceed after the next two federal elections to re-mail to those individuals because they may move from inactive to removed status.

[00:14:04.030] - Speaker 1

I will emphasize that sometimes the word purge is used and we don't tend to use that word because that implies that things get deleted. There is an electronic record for any electronic record we've ever had. Their status may be such that they don't appear on the voter registration roll when someone goes to vote. But this way we have a way of looking them up and determining if somehow they were removed inaccurately based on bad data or something like that. We also have an exchange of data with the Department of Public Safety and Corrections because of people who are no longer serving a felony sentence or who have been convicted of a felony, and that needs to be updated. We exchange data with the Department of Vital records. This is at the state level. You'll hear of register of deeds and death records there, but the actual

official death record is maintained by the North Carolina Vital Records Department. So we have a push of data there. Trying to think Pat or Stella? Did I forget a source?

[00:15:24.890] - Speaker 4

Well, I was wondering if it might be helpful to just mention what we hope will be involvement with Eric.

[00:15:35.300] - Speaker 1

Sure. Yeah. Georgia is a part of the electronic Information oh, gosh. Registration center.

[00:15:43.390] - Speaker 2

Registration Information Center.

[00:15:45.520] - Speaker 1

Yeah. Thank you. And we have authorization to join and the funds to join, and so we are in the process of doing that. This is a collaborative membership organization of states. A few states have removed themselves recently or unjoined, however you want to see it, but Georgia is still involved and about 25 others. So we hope to join that. And it's where we can guarantee if you're a member, then those members agree to exchange their data so you can look for Duplications across state lines. We can also get national death records, Social Security information, to know if someone died across state lines. We don't necessarily get that through our vital records. Similarly, right now, because we aren't part of the Eric program, we are only maintaining the information we know within our state. If someone moves to Atlanta, there's a section on their voter registration forms that says that this is where I was previously registered, but it's voluntary for them to complete that. And so it's difficult for us to know when someone moves to another state without being part of the Eric program. But that also explains why our in house system being centralized and managed statewide across all 100 counties.

[00:17:15.610] - Speaker 1

If someone doesn't complete that section of their form saying, I moved from Wake County to Mecklenburg County, then within our own system, we're able to identify them through data matches.

[00:17:28.670] - Speaker 3

Got you. Obviously, some of your data is public record and some of it is private. So what goes into the decision of one making records public and then also why certain information private.

[00:17:48.470] - Speaker 1

Yeah, well, I'll take a stab out and then our public information officer is probably the best person to describe that, too. So it's really just based upon legislation and what various state laws allow in our state, for example, if someone wants to request a voter registration list, that's free unless they want a printed copy, and then we can charge for the cost of the copying and printing, which no one does anymore. When I was a county elections director, we used to have to charge for the CD, and if you got a good sale, then somebody got it for ten cents, and then a week later they might have to pay \$0.25. But anyway, luckily, we don't deal with CDs anymore, but because in our state, we don't charge and it's considered, our law permits us to publish that we maintain. And this is probably why your class is seeking out North Carolina, I'm guessing because we're one of the few states that we just keep that data out there. You all will probably appreciate that we get alerted by our cyber partners all the time of North Carolina's voter registration list is on the dark web, okay?

[00:19:04.510] - Speaker 1

And it's not because we take it lightly. It's not got personal identifiable information, but our law says that it is public record that someone is registered to vote, what party affiliation they have, what their address is, and if they gave contact information, that's public information, their phone number is what I mean by that. I think the foundation of that is in North Carolina, if you are at a polling place and you see someone come in who you do not believe is a registered voter, you can challenge that person. The same with their absentee by mail ballot. And so having access to the voter registration database is how the public would have knowledge to that. That's not all spelled out in law, but that's sort of the premise behind the law and why it's maintained in such a public way. So, Pat, do you want to add to that what we do have to redact or cannot make public on a database or a list that we publish is also identified by law. So personal identifiable information, Social Security, your actual date of birth, signatures, those sorts of things are defined by our law.

[00:20:32.730] - Speaker 2

Yeah, Karen's right. I'll just add that I can send you the statutes that apply here. So we are required to provide the voter registration records, the public voter registration records, to anyone who asks, anyone who requests it. But we're required also to make certain fields confidential to redact them from any document that we would ever provide. So the lists that are

on our public website will not include driver's license number, Social Security number, date of birth, voter signature, any of those fields that are required to be confidential under state law. But it's kind of a blessing and a curse. We provide more data than anyone else, but I guarantee you than probably any other state, and that's by law. But we also probably get the most questions, the most people digging into it to find anomalies or things like that. So we spend a lot of time responding to questions about our data and helping people use it.

[00:21:37.470] - Speaker 3

Cool. So you Karen, mentioned different entities that you got shared data with. So do all these entities have access to the private data as well? Or is it just the public record that we could get?

[00:22:00.710] - Speaker 1

The other entities that are agencies that must offer voter registration and then send those registrations to us, or the fact that those clients declined has to be notified to us? That's through the federal NVRA they push to us or we pull from them. We don't really push back out to them. If they want access to our voter registration records, for some reason they would only receive what the public receives. I'm trying to think if there's a situation pat, can you think of a situation where we push our data to another agency? We might have had to have done, but I was going to say we might have done it when we had the change in our felony former felon laws for registration, but I don't think we did then either. I think we pulled from them and then we did the data comparison. I'll never say never because we've been in, you know, I mean, we've been doing our centralized database since 1998 was when we built out our platform and we do it all in house. We're not vendor run, so we still have the in house developers, but I can't think of an occasion when we share it with anyone other than what the public would receive with another agency.

[00:23:40.620] - Speaker 2

I mean, just in full disclosure, eric would be one of those situations, potentially. But there are a series of agreements that you enter into with Eric if and when you join. I can't think of another one where we send confidential data to other people. I think the other DMV, DPS for Felon data, vital records for death data, that's them pushing it to us. And that would obviously include some confidential data. And there are detailed agreements in place for most or all of those to ensure that confidential data are kept confidential.

[00:24:29.670] - Speaker 3

Just to my team. I don't want to ask any questions, but if you guys want to jump in at any point, just do so. But just to continue. So do you guys believe there are any private are concerned with any privacy risk? If you had to think about the data yourself, what risk have you guys associated with the collection of your data or do you even believe there are any risk associated with it?

[00:25:04.370] - Speaker 1

Are you talking about guarding against cyberattacks or something like that? Or do you mean the accuracy of our data?

[00:25:15.770] - Speaker 3

I think more so just in terms of the data that's available being identifiable to a person. So if I'm not saying it's clear, maybe somebody can help me out.

[00:25:35.370] - Speaker 5

I think it's just like, are there any risks with being so open about your data, privacy data, like considering that anybody can access it? And I guess in a way it is a cybersecurity attack in a sense.

[00:25:53.350] - Speaker 1

Yeah. So we certainly have to put in and I've been pretty public about this, we've added multifactor authentication to our system. We've got sensors and monitoring and logging going on and so forth to guard against that. We don't work off of public platforms in our network of this, you know, central system. So those are, you know, we're certainly there's measures there from a cybersecurity standpoint that we have to implement, and there were some of that already in place. I mean, obviously, we had to guard against intrusion before we were critical infrastructure, but upon being critical infrastructure in 2017, that's heightened. But in terms of the risk of being this pretty open, transparent agency, we weigh that a lot for as permissive as our law is. It also means that we could put in controls if we need to, and we do weigh that. So, for example, we have no law that means that any elected official or anyone well, just any elected official, we do not have their registration information blocked. So technically, you can go on to our site and get voter registration data and know where a district attorney lives or know where a member of the legislature, their home address, because you've looked it up through voter registration.

[00:27:42.200] - Speaker 1

We struggle with that because we know in the heightened tension that we live in, that that puts some people at risk. But we have no legislation that says that we should put in any restraints to that. We certainly don't have authorization to block those from being not included on our voter registration. What we have debated, and it'd probably be interested to see where your class falls on this, is whether when we use our voter search tool, just that lookup tool, whether we should have some additional required fields that must match in order to access that individual record. But those are some of the risks, because you can do an individual lookup just like you can getting the entire voter registration list. There's one classification, there is a confidential we can mark something confidential within our database, and that's someone who is on like a witness protection program or it's been court ordered because of, say, maybe domestic violence or something we don't actually know by someone, but we get that court order saying to mark them confidential. So there are I don't even know the exact number. We'd say probably a few hundred within our whole seven plus million registered voters that would fall into that classification.

[00:29:21.250] - Speaker 1

But otherwise there has been talk of legislation where judges, for example, is one area where they've talked about making their records confidential district attorneys, the legislature. There's actually a bill right now where the legislators want to protect their registration. I think what we weigh sometimes in our level of transparency is we are a source, but we aren't the only source. We recognize that if someone owns a car, someone owns a home or something like that, you can look up property tax or their tax records, real estate tax records or personal property. We tax vehicles in North Carolina, so there are databases and ways of obtaining that information too. So that's sort of the risk side. Pat, I will add a lot.

[00:30:19.080] - Speaker 2

Yeah, I do. We do get complaints about why our data is so accessible from everyday folks, as well as people like judges, district attorneys, law enforcement officers, legislators this year. And it's a tough question because by law, all of our voter registration database except those fields that are confidential, by law, we're required to release those to anyone who asks. So if we block all of our data, if we make our data a lot harder to access, there are already third parties out there who use our data and have their own websites that you can look up all the voters information that's public. Anybody could then go create their own website that's just like our voter search tool and allow anybody to use it because our laws make all of that information public. So again, we have to release it to anyone. We could lock it down a little bit for our voter search tool, or it'd be a little bit harder to find somebody's address if you really wanted to find

somebody's address. But then again, there are third party sites already out there that somebody could go to and you could go into the big database, which is public.

[00:31:34.030] - Speaker 2

And again, anybody can request it and could find that if we lock it down. We also know that we have a very small staff, and if we lock stuff down, that's just going to mean increased requests that we don't have enough people to respond to. So we would get a lot more public records requests, a lot more data requests than we already get. So there's this kind of balancing act. But the bottom line is the law makes it public. If we were told to lock it down or asked or there was legislation that passed to lock it down, of course we would do that. And we're debating right now whether we should do that for our voter search tool. We cannot lock down the whole data set, though, because that is public record in North Carolina, and we'd be breaking the law to not provide it to anyone who asks. So it's a tough question. We understand the world that we live in, but we also know there are a lot of people who use our data for very good reasons. For you guys, for example, maybe using our data for good reasons college professors, students, of course, the political parties and candidates and advocacy groups and people that want to make sure that somebody wasn't inadvertently removed from the voter rolls.

[00:32:54.860] - Speaker 2

Or want to make sure, on the other end, that somebody who's not eligible is removed from the voter rolls. So there are a lot of people who use our data for very good reasons and very good purposes. So, again, it's a balancing act, and it's one that we've struggled with. I've been here since 2016, and this debate was being had then, it's still being had now, but I always come back to it's the law, and we're required to provide the data to anybody who asks other than, of course, the confidential data, which would be committing a crime if we provided. Again, this is kind of where we are right now, but it's still up for debate.

[00:33:38.610] - Speaker 4

Sounds like lots to talk about Monday, right? I'm happy to be on that or not on that. Karen are the better people for the questions that you guys have and your interests. And I do have to get off of here very soon, but only because I have another zoom with a student of mine that I have to take care of.

[00:34:07.790] - Speaker 3

This meeting is actually about to end in, like, three minutes anyway.

[00:34:12.290] - Speaker 4

Okay.

[00:34:14.290] - Speaker 3

Yeah. But you guys pretty much answered all the questions we really had and gave a lot of insight, a lot of information. It was very helpful. Once again, just thank you for your time. I really appreciate it. Karen, we'll see you on Monday, and maybe if you guys want to join too, we'll see you again then.

[00:34:31.660] - Speaker 1

Well, thank you. I'm just curious, are any of you from North Carolina?

[00:34:36.410] - Speaker 3

I'm from Atlanta.

[00:34:38.000] - Speaker 1

Okay.

[00:34:38.400] - Speaker 5

Yeah, I'm from Atlanta as well.

[00:34:40.570] - Speaker 1

Okay. How did you pick North Carolina?

[00:34:46.410] - Speaker 3

There was, like, a list that they gave us for the assignment of states that have publicly available data. So you guys are on a list of, like, nine other states. I think you guys definitely had the most collected the most information and had the most information publicly available. So that was kind of like North.

[00:35:07.740] - Speaker 1

Carolina proving past point. The more data we have out there, it doesn't reduce our public records.

[00:35:12.380] - Speaker 2

Request blessing, and a curse. We love you for all the data you have, and it allows us to do all this research, and we hate you, because my data should not be out there. If I register to vote, we've got it all. We hear it from all sides, and.

[00:35:31.770] - Speaker 1

Pat still has hair. It's amazing. Well, it's great meeting you all. I hope I don't bore you in class on Monday night, but look forward.

[00:35:45.450] - Speaker 3

Everybody's going to be excited to see you.

[00:35:47.530] - Speaker 1

Well, great.

[00:35:49.610] - Speaker 3

All right, have a great rest of.

[00:35:52.070] - Speaker 1

You think of anything else.

[00:35:53.460] - Speaker 4

Thank you.

[00:35:53.960] - Speaker 2

Thank you, guys. Good luck.

[00:35:55.110] - Speaker 1

Bye bye.

[00:35:55.910] - Speaker 2

Matthew, feel free to reach out to me if you have any follow up questions. Happy?

[00:36:00.930] - Speaker 4

Thank you. Bye.